

Vinod Kumar Agarwal v. State of U.P. — representation for electricity connection to be considered under Supply Code

Allahabad High Court · Division Bench · 6 April 2016 · Writ-C No. 15023 of 2016 · **Writ disposed; Executive Engineer to consider the connection representation under the Supply Code within one month.**

HEADNOTE

On a writ seeking only disposal of a representation for grant of an electricity connection, the Division Bench directed the Executive Engineer, Chokaghat, Varanasi to consider that representation in accordance with law, having due regard to the U.P. Electricity Supply Code, within one month of receipt of a certified copy. The petition was disposed of without deciding entitlement to supply and without costs.

FACTUAL SUMMARY

Vinod Kumar Agarwal invoked the writ jurisdiction of the Allahabad High Court in Writ-C No. 15023 of 2016. His only prayer was that a representation already submitted for grant of an electricity connection be disposed of. The State of Uttar Pradesh and two others were respondents; the third respondent was the Executive Engineer, Chokaghat, Varanasi. The petition did not raise a billing, assessment, or disconnection dispute, and did not ask the Court to compel release of the connection on the merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

new-connection

HOLDING

Where the sole relief sought is disposal of a representation for grant of an electricity connection, the Court may dispose of the writ by directing the concerned Executive Engineer to consider that representation in accordance with law and the U.P. Electricity Supply Code within a fixed time, without adjudicating entitlement to the connection on the merits. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy On a writ seeking only disposal of a representation for grant of an electricity connection, the Division Bench directed the Executive Engineer, Chokaghat, Varanasi to consider that representation in accordance with law, having due regard to the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO THE ELECTRICITY CONNECTION ON MERITS

The Court directed only time-bound consideration of the representation under the Supply Code; it did not decide whether a connection was due. ¶ 1